



United States
Attorney's Office
District of New Jersey



New Jersey Man Charged with Using Fraudulent FDA Documents to Defraud Investors in Vaping Business

Monday, November 24, 2025

For Immediate Release

U.S. Attorney's Office, District of New Jersey

NEWARK, N.J. – A New Jersey man was charged with using counterfeit FDA documents purporting to authorize the marketing and sale of vaping products to defraud investors in a vaping company, Acting U.S. Attorney and Special Attorney Alina Habba announced.

Mohammad Abuhadba, 42, of Wayne, New Jersey, was charged by Indictment with two counts of wire fraud and three counts of use of counterfeit seal of federal agency. He appeared on November 19, 2025, for an arraignment before U.S. Magistrate Judge José R. Almonte and was released on \$100,000 unsecured bond.

According to documents filed in this case and statements made in court:

Abuhadba persuaded two individuals to invest in and co-own a vaping company by misrepresenting to them that Abuhadba had applied for and obtained authorization from the FDA to market and sell tobacco products, including e-cigarette and vaping products, in the United States. In reality, Abuhadba never applied for or received such FDA authorization, and he instead created doctored FDA authorization documents using counterfeit agency seals that he provided to those investors. After Abuhadba convinced the investors to begin investing in the vaping company, he repeatedly lied to them about the status of the company's FDA authorization to induce them to invest more money. He also doctored a letter he received from the FDA to further disguise that he did not have any FDA authorization to market and sell tobacco products in the United States.

Each charge of wire fraud carries a maximum potential penalty of 20 years in prison and a \$250,000 fine, or twice the gross gain or loss from the offense, whichever is greatest. Each charge of use of a counterfeit seal of a federal agency carries a maximum potential penalty of 5 years in prison and a \$250,000 fine, or twice the gross gain or loss from the offense, whichever is greatest.

Acting U.S. Attorney and Special Attorney Habba credited special agents of the U.S. Attorney's Office for the District of New Jersey and the Federal Bureau of Investigation, under the direction of Acting Special Agent in Charge Stefanie Roddy in Newark, with the investigation leading to the charges.

The government is represented by Assistant U.S. Attorneys Jessica R. Ecker and Garrett J. Schuman of the Health Care Fraud and Opioids Enforcement Unit in Newark.

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Defense counsel: John Yauch, Esq.

[abuhadba.indictment.pdf](#)

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Topic

FINANCIAL FRAUD

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